

Bihar Boilers Attendants' Rules, 1948

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State of Bihar - Act

Bihar Boilers Attendants' Rules, 1948

BIHAR

India

Bihar Boilers Attendants' Rules, 1948

Rule BIHAR-BOILERS-ATTENDANTS-RULES-1948 of 1948

Published on 26 October 1948

Commenced on 26 October 1948

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Bihar Boilers Attendants' Rules, 1948

Published vide Notification No. 3502-VS-4/48-50, dated 26th October, 1948

No. 3502-VS-4/48-L. - In exercise of the powers conferred by Section 29 of the Indian Boilers Act, 1923 (V of 1923), the Governor of Bihar is pleased to make the following rules, the same having been previously published, as required by sub-section (1) of Section 31 of the said Act:-

Part I ? Preliminary

1.

Short title, commencement and definitions.

(1)

These rules may be called, the Bihar Boiler Attendant's Rules, 1948.

(2)

They shall come into force on the 1st day of November, 1948.

(3)

In these rules, unless there is anything repugnant in the subject or context,-

(a)

"Board" means the Board of Examiners constituted under rule 11;

(b)

"the Act" means the Indian Boilers Act, 1923;

(c)

"Section" means a section of the Act.

Part II ? General

2.

Boiler to be in charge of person holding a Boiler Attendants' Certificate.

- The owner of a boiler shall not use the same or permit the same to be used unless the boiler is under the direct and immediate attendance and charge of a fit and proper person as described in Rule 3:

Provided that the Provincial Government may by notification in the Bihar Gazette exempt any boilers or classes or types of boilers from the operation of this Rule.

3.

Competent person must possess certificate; extent of qualification.

- No person who does not possess a certificate of competency under these rules shall be deemed a fit and proper person to be in attendance and charge of a boiler; and no holder of any such certificate shall be deemed a fit and proper person to be in attendance and charge of any boiler, except to the extent of his qualification indicated by his said certificate.

4.

Holder to produce certificate when called for by authorised person.

- The holder of a certificate under these rules shall, at all reasonable times during the period a boiler is in his charge, be bound to produce such certificate when called upon to do so by any of the persons empowered under Section 15 to call for the production of the certificate or provisional order authorising the use of the boiler.

5.

Owner to furnish Chief Inspector with particulars of certificates.

- Any owner of a boiler who engages any person to hold charge of a boiler shall at once furnish the Chief Inspector with the name and qualification of such person together with the registered number of his certificate granted under these Rules.

6.

Limits of daily period of attendance, reliefs allowed and sphere of action.

(a)

An attendant in charge of a boiler for which a certificate of competency of the first class is required may be relieved of charge in anyone day for not more than two periods, which when combined do not exceed two hours in duration by a person holding a certificate of competency of the second class.

(b)

In special cases, the holder of a first class certificate may, with the consent in writing of the Chief Inspector, be relieved by a person holding a certificate of the second class for a period which may extend to seven consecutive days.

(c)

A person in charge of a boiler shall be held to be in direct and immediate attendance and charge of the same when he is within 150 feet of such boiler.

7.

When boiler deemed to be in use.

- A boiler shall be deemed to be in use for the purpose of these Rules when there is active fire in the furnance, firebox or fireplace for the purpose of heating the water in the boiler. When the fire is removed, extinguished or effectively banked so that no appreciable heat passes from the fire to the water and all steam and water connections are closed, a boiler shall be deemed to be not in use.

Part III ? Certificate for Boiler Attendants

8.

Classes of certificates and capabilities of holders thereof.

- Certificate of competency granted under these rules shall be of two classes. The certificate of the first class shall qualify the holder thereof to be in charge of a set of connected boilers of any kind or capacity or of so many separate or connected boilers belonging to the same owner as are so situated that no one of them is distant more than 150 feet from any other of them; and a certificate of the second class shall qualify the holder thereof to be in charge of any single separate boiler.

9.

Exchange certificates.

- Any person in possession of a certificate of competency granted by any competent authority in the Dominion of India or in United Kingdom or in any British Dominion or Colony shall, at the discretion of the Board, be granted a certificate of competency in either of the classes specified in Rule 8 without undergoing examination.

The certificate granted under this Rule shall be of such class as the Board of Examiners or majority of the members of the said Board, on consideration of the nature of the certificate in such person's possession, shall determine.

10.

Service certificates.

- The Board may, in the case of any person who satisfies it that he has served for a period of not less than 10 years as a Boiler Attendant or head fireman in working charge of a set of boilers or that he has served for a period of not less than six years in working charge of a separate boiler prior to the date on which these rules come into force and that he is possessed of competent practical skill for such work, grant to him a certificate of service of the effect that he is qualified to the like extent as the holder of a certificate of competency of the first class or of the second class as the case may be. Such certificate of service shall be signed as in the case of a certificate of competency.

A certificate of service so granted shall have the same effect as a certificate of competency granted under these Rules.

Part IV ? Board of Examiners

11.

Constitution of Board of Examiners.

- The Provincial Government shall constitute a Board of Examiners in the town of Dhanbad, or in such other places as may be considered necessary. The Board shall consist of the Chief Inspector, an Inspector nominated by the Chief Inspector, and not less than three other members who should be competent engineers holding responsible posts and having knowledge of Prima Movers and Boilers, to be appointed by the Provincial Government from time to time. The Chief Inspector shall be ex-officio Chairman of the Board, and the Inspector nominated by the Chief Inspector shall be ex-officio Secretary. An ordinary member may at anytime before the expiry of his period of office as laid down in Rule 15, submit his resignation in writing to the Provincial Government and shall thereupon cease to be a member. The Provincial Government shall fill any vacancy thus arising by nomination.

12.

Term of office of the members.

- The term of office of members other than the ex-officio members of the Board shall be three years. If a member leaves the province or is absent therefrom for a period of more than six months, he may be deemed to have vacated his seat on the Board and another person may be appointed in place of such member for the unexpired portion of such member's term.

13.

Function of the Board.

- The function of the Board shall be-

(i)

to conduct examination of candidates for the grant of certificates of competency;

(ii)

to grant certificates of competency and certificates of service under these Rules;

(iii)

to enquire into allegations of incompetence, negligence or malpractice on the part of Boiler Attendants holding certificates of competency or certificates of service granted by the Board and to take such action as may be considered necessary, including suspension or cancellation of certificates;

(iv)

to maintain a register of all Boiler Attendants holding certificates of competency and certificates of service under these rules; and

(v)

generally to carry out the provisions of these rules.

14.

Meeting of the Board.

- The Board shall meet once in three months and at such other times as may in the opinion of the Secretary be necessary for transacting business, which cannot be disposed of by circulation of papers, for the grant of certificates without examination or for holding of examination or for the performance of any other duty of such Board. At least seven clear days' notice of all such meetings shall be sent to each member.

15.

Quorum.

- The Chairman or the Secretary and three members of the Board shall form a quorum.

16.

Chairman of the Board.

- The Chairman shall preside over all meetings of the Board and give a casting vote in case of equality of votes and in his absence, a member chosen by the members present at the meeting shall preside over the meeting and give a casting vote in case of equality of votes.

17.

Secretary of the Board.

- The Secretary to the Board shall perform such duties and exercise such powers in addition to those specified in these Rules, as the Board of Examiners may direct.

18.

Board's endorsement on application form.

- The Board shall endorse on the printed application form of each candidate the result of his examination for a certificate of competency of its decision in regard to applications for certificates under rules 9 and 10. The endorsed applications for certificates of competency shall be returned to the Secretary to the Board at the close of the examination.

19.

Board empowered to refuse issue of certificate.

- The Board is empowered to refuse the issue of a certificate of competency or service to any candidate who in the opinion of the majority of the members of such Board appears to be too old or physically unfit through deformity, constitutional weakness, bad eyesight, deafness or loss of a limb to perform properly the duties of a Boiler Attendant. Any such candidate may appeal to the Provincial Government against any decision of the Board under this Rule and the Provincial Government may send the candidate at his own cost to such medical authority as it may determine for medical examination and the Board shall either issue or refuse a certificate in accordance with the opinion of such medical authority.

20.

Fees to Members.

- Each member of the Board attending the examination shall be entitled to receive a fee of Rs. 30 for each meeting of the Board. The ex-officio Chairman and the ex-officio Secretary will also be entitled to the fees payable to the members of the Board if they attend the examination.

Part V ? Examination

21.

Examination.

- The examination for the grant of certificates of competency shall be held by the Board at such places and on such dates as may be notified by the Secretary to such Board from time to time in the Bihar Gazette and local papers.

22.

Kinds of examination.

- Examinations shall be of two kinds, one for each class of certificate of competency which the Board is empowered to grant under these Rules, namely, certificates of competency as first class Boiler Attendant and certificates of

competency as second class Boiler Attendant.

23.

Postponement of examination.

- When a gazetted holiday falls on the date fixed for the examination or when for any unforeseen reason an examination cannot be held on the date fixed, the Chairman may fix some other day for holding the examination, which shall be duly notified, to the candidates for examination.

24.

Clerical Assistance at examination.

- Every examination shall be attended by one or more clerks from the office of the Chairman of the Board, who shall do such clerical work as may be necessary for which no honorarium will be paid.

Part VI ? Application for Examination

25.

[Form of application.

[Substituted by Amendment No. II/B1103/66 L & E-6324-dated, 28th June, 1966. Published in the Bihar Gazette Part II dated August, 1966.]

- Every applicant for examination under these Rules shall make application in Form A, appended to these Rules. He shall fill in those parts of the form that are to be filled in by a candidate and either sign or put his thumb impression on the form in the presence of a Gazetted Officer or an Honorary Magistrate who shall append his signature in token of attestation, and the application so filled in shall be forwarded to the office of the Chairman of the Board of Examiner not later than one month before the date fixed for the examination, and be accompanied by-

(i)

testimonials of good character;

(ii)

original and copies of all testimonials of practical experience;

(iii)

a treasury challan in support of payment of the fee specified in these rules for the examination at which the applicant wishes to appear;

(iv)

any certificate granted to the applicant under these Rules or a certificate granted by a competent authority referred to in Rule 9;

(v)

two copies of recent bust photographs (size 2" x 2 ¼") one of which shall bear the signature or the thumb impression of the applicant on the back.

(vi)

a certificate from the District Magistrate or Additional District Magistrate to the effect that the applicant is a citizen of India.]

26.

Fees for examination.

- Candidates for examination for certificate of competency shall pay the following fees which shall not be returnable:-

Examination for 1st class certificate

...

...

Rs. 15

Examination for 2nd class certificate

...

...

Rs. 10

Note. - All fees for examination for certificate of competency, exchange certificate and service certificate of competency of Boiler Attendants leviable under these Rules shall be paid into the Dhanbad sub-treasury by means of challans or shall be remitted by the ordinary inland money-order in favour of the Chief Inspector of Boilers, C/o Sub-Treasury Officer, Dhanbad, or may be paid by cheques to the Chief Inspector of Boilers, Bihar, drawn on the Imperial Bank of

India, Dhanbad. The cheques must be crossed and drawn in favour of the Chief Inspector of Boilers, Bihar by designation and not by name. All such fees whether paid into the said sub-treasury by means of challans or remitted by money-orders or paid by crossed cheques, shall be credited to the receipt head "XXXVI - Miscellaneous Departments - Examination Fees - Boiler Attendants Examination fee".

27.

Refund of fees.

- Candidates once admitted to an examination under these Rules shall not be entitled to any refund of fees if they fail to pass or proceed with the examination. Where a candidate is unavoidably absent from the examination on the date fixed, the Chairman of the Board may allow him to appear without payment of a second-fee at any one of the subsequent examinations held within one year of such first examination.

28.

Fees of candidates found ineligible.

- Candidates found ineligible for any examination may be allowed to appear without payment of a second fee at any one of the subsequent examinations held within one year from the date of payment of fee for which they might be eligible, or they may apply, within one year from the date of payment, for a refund of the fee.

Part VII ? Testimonials

29.

Candidates to produce satisfactory testimonials.

- No candidate shall be admitted to examination who cannot produce satisfactory testimonials certifying to his experience, ability, sobriety and general good conduct for the whole period of his qualifying service. Breaks in the period of qualifying service shall be accounted for satisfactorily.

30.

Essential Statements.

- Testimonials shall clearly state the capacity in which the candidate was employed, whether as Boiler Attendant, Head Fireman, Donkeyman or Fireman and show the dates between which the candidate was so employed.

31.

Signature and countersignature.

- Testimonials shall be signed by the Engineer under whom the candidate was employed, or, if not employed under an Engineer, by a responsible person under whom he worked and shall be countersigned by the Owner, Agent, Manager or Secretary of the mill or factory or workshop as the case may be.

32.

Sea service.

- Testimonials for service on steamships may be signed by the Chief Engineer and countersigned by the Master of the vessel or may be in the ' form of a seaman's discharge issued by a shipping Master.

33.

Railway or Public Works Department service.

- Testimonials of service on Railway Boilers, or boilers belonging to the Public Works Department or local bodies, shall be signed by a responsible officer under whom the candidate has directly served and countersigned by the head of the department concerned.

34.

Doubtful testimonials.

- If the Secretary to the Board has reason to doubt the truth of any statement made in any application or testimonials, he may make such inquiries as he thinks fit to verify the truth.

35.

False testimonials.

- If on inquiry the Secretary is satisfied that any testimonial submitted by a candidate is false, he shall place all the facts before the Board and with the approval of the Board he shall by written order debar such candidate from being admitted to any subsequent examination held under these Rules and if upon submission of any such testimonial a candidate has already been admitted to examination, he shall be deemed to have failed in such examination and any certificate obtained by him by reason of having been declared to have passed such examination shall be forthwith cancelled by the Secretary.

36.

Filing of copies, and return of original testimonials.

- Applications and copies of testimonials submitted by candidates shall be filed in the office of the Secretary to the Board. Original testimonials shall be returned to the candidates at the close of the examination.

Part VIII ? Age and Training

37.

Age and training of second class candidates.

- A candidate for a certificate of competency as a Boiler Attendant of the second class shall not be under twenty-one years of age and shall not be admitted to the examination unless he proves to the satisfaction of the Board that he -

(a)

has served for not less than three years as a fireman or attendant on a steam boiler or as a driver on a combined steam engine and boiler; and

(b)

has served for not less than three years as an engine fitter where boilers and engines are repaired or made and worked under steam; or

(c)

produces from the head of an industrial or technical institution a certificate stating that he has completed a three years' course of training one year of which must have been as apprentice engineer in a steam power plant of a mill or factory or an engineering workshop where engines and boilers are repaired or made. Service with boilers not continuously under steam shall count as service of half the same length with boilers continuously under steam. In the case of Sugar Factories or seasonal factories certificates of the actual dates of service whilst the boiler or boilers are steaming are to be produced.

38.

Service as engine-fitter.

- Service as engine-fitter means journeyman's service in making or repairing steam engines or accessories. Such service may include service as a turner, if employed on the same kind of work, but not more than one-half of the qualifying period shall be allowed for time spent as a turner in making up the total journeyman's service.

39.

Service as an apprentice engineer.

- Service as an apprentice engineer means the regular performance of such duties in a workshop where steam engines or accessories are made or repaired as will enable a person to obtain under efficient supervision a practical knowledge of the various operations in the making or repairing of steam engines and to acquire practical experience in the use of tools and in the making and fitting together of parts of machinery.

40.

Age and training of first class candidates.

- A candidate for a certificate of competency as a Boiler Attendant of the first class shall not be under twenty-three years of age and shall not be admitted to the examination unless he possesses or proves to the satisfaction of the Board that he has received such training as is required under Rule 37 in the case of a candidate for a certificate of the second class and possesses or is able to claim a certificate of competency of the second class and in addition thereto -

(a)

has served for not less than two years as a Boiler Attendant with a second class certificate of competency in sole working charge of a boiler of Locomotive, Lancashire, Cornish, Water-Tube or Marine type each of not less than 500 square feet heating surface; or

(b)

has served for not less than three years as fireman, serang on a battery of two or more boilers of Lancashire, Cornish, Water-Tube or Marine type each of not less than 500 square feet hearing surface; or

(c)

has served for not less than three years as fireman, serang or tindal on a steamship with one or more boilers each of not less than 500 square feet heating surface; or

(d)

produces from the head of an industrial or technical institution a certificate stating that he has completed a three years'

course of training, one year of which must have been as an apprentice engineer in a steam power plant of a mill or factory or an engineering workshop where engines and boilers are repaired or made and in addition has served for not less than two years in sole working charge of a boiler of not less than 500 square feet of heating surface with a second class Boiler Attendant's Certificate.

41.

Service not in strict conformity with rules.

- In any case in service of a candidate does not strictly comply with anyone of the clauses specified under Rules 37 and 40 but is not less than the total period required under either Rule, the Board may, if it thinks fit, accept such service on its merits.

Part IX ? Examination Subject

42.

Second class Boiler Attendant.

- A candidate, in order to be qualified for certificate of competency of the second class, shall satisfy the examiners that-

(a)

he clearly understands-

(i)

the working and management of a steam boiler;

(ii)

the use and purpose of various valves, cocks, mountings and fittings;

(iii)

the precaution to be taken and procedure to be observed before starting fires and when raising steam;

(iv)

the use of a feed pump and injector;

(v)

the reading of the pressure gauge;

(vi)

the need for periodical cleaning and pure water-supply and for prevention of scale or other deposit on heating surfaces;

(vii)

the need for periodical inspection of boilers and manner in which they should be prepared for thorough inspection, hydraulic test and steam test;

(viii)

the precautions to be taken before entering or allowing any person to enter a boiler that is connected to another boiler under steam;

(ix)

the use of the best means of firing for the prevention of smoke;

(x)

the danger of water lodging in steam pipes and the precautions to be observed in draining;

(xi)

the procedure to be followed in the event of shortness of water bulging or fracture of furnace or flat plates or bursting of tubes or of any accident to a boiler or steam pipe; and that

(b)

he is able-

(i)

to stoke a boiler including cleaning and banking fires, in a workman like manner;

(ii)

to show how avoidable smoke may be prevented;

(iii)

to blow through and test the correctness of water-gauge glasses and test cocks;

(iv)

to replace a gauge glass and show how a false water-level might be shown;

(v)

to ease a safety valve and use a blow down cock or valve;

(vi)

to adjust a high steam and low water safety valve and renew a fusible plug;

(vii)

to joint a manhole or handhole door or any cover or flange in the steam or feed pipes;

(viii)

to pack pump or valve chest glands;

(ix)

to grind and adjust cocks and valves;

(x)

to take a donkey pump or injector to pieces and replace in working order.

43.

First class Boiler Attendant.

- A candidate, in order to be qualified for certificate of competency of the first class, shall satisfy the Examiners that in addition to the subjects specified for candidates for certificate of competency of the second class, he has at least a rudimentary knowledge of the principal elementary facts relating to combustion, heat and steam; and that he is able to some extent to explain-

(i)

the principal causes and effects of corrosion and incrustation and the usual remedies employed;

(ii)

the object of the use of water softners;

(iii)

the principles on which feed pumps and injector work;

(iv)

the principles on which appliances for the prevention of smoke work;

(v)

the purpose of super-heaters, economisers, feed heaters, feed filters, forced and induced draft appliances and mechanical stokers.

Part X ? Mode of Examination

44.

Nature of Examination.

- Every examination shall be of such a nature as to test the practical knowledge of the candidate and to ascertain his competency to manage a boiler or boilers.

45.

Examination in writing optional.

- The examination shall be conducted orally, but any candidate may, if he desires, write his answers to such written questions as may be given to him by the examiners.

46.

Examination where held.

- If the Board consider necessary the examination may be held either in a factory, mill or workshop in which boilers are used or partly in such factory, mill or workshop and partly in the examination room.

47.

Practical test essential.

- Every candidate must be able to demonstrate on an actual boiler or fitting or model his ability to perform any or all of the practical tests referred to in clause (b) of Rule 42.

48.

Hours of examination.

- Examinations shall be conducted in the examination room between the hours of 11 A.M. and 5 P.M. unless otherwise notified by the Secretary to the Board.

Part XI ? Grant of Certificates

49.

Form of certificate.

- Certificates of competency, certificates under Rule 9 and certificates under Rule 10 shall, respectively be in Forms B, C and D appended to these Rules.

50.

Surrender of lower grade certificate.

- No certificate of competency of the first class shall be granted to the holder of a certificate of the second class after examination under these Rules unless and until he has surrendered to the Secretary to the Board the certificate of the lower grade.

51.

Exchange certificate.

- An exchange certificate of competency under Rule 9 shall be granted only in respect of and on production of a certificate issued by a competent authority referred to in that Rule. The facts of the exchange certificate having been granted, shall be endorsed on the original qualifying certificate before its return to the owner.

52.

Identification requirements.

- Every certificate granted under these Rules shall bear a bust photograph of the holder, submitted by the candidate with his application under Rule 25 and his signature, or thumb impression and such other particulars as may be required for the purpose of identification.

53.

Grant of duplicate certificate.

- Whenever the holder of a certificate proves to the satisfaction of the Secretary to the Board that the certificate granted to him under these Rules has been lost, stolen or destroyed or mutilated without fault on his part, he shall be granted a duplicate certificate to which, by the record so kept as aforesaid, he appears to be entitled, which shall have for all purposes the same validity as the original certificate.

54.

Record of duplicate certificate.

- Duplicate certificates granted under Rule 53 shall be recorded in the office of the Chairman of the Board.

55.

Application for lost certificate.

- Application for duplicate certificates shall be lodged with the Secretary to the Board together with a declaration sworn before an Honorary Magistrate or a Gazetted Officer that the certificate granted under these Rules has been lost, stolen or destroyed or mutilated without fault on the part of the applicant.

56.

Fees for duplicate certificate.

- Applicants for duplicate certificates of any class or kind granted under these Rules shall pay a fee of Rs. 5 for each duplicate certificate. This fee shall be paid in the same manner and credited under the same head as fees for examination mentioned in Rule 26.

57.

Invalidity of original certificate.

- On the issue of a duplicate certificate, the original certificate shall be deemed invalid and if found shall be returned to the Secretary to the Board for cancellation.

Part XII ? Exchange Certificate

58.

Application for exchange certificate.

- Applications for certificate of competency under Rule 9 shall be in Form A appended to these Rules. Each applicant shall duly fill in the form, which together with the original certificate already in his possession and a copy of it and a challan or money-order receipt for the amount of the fee specified in Rule 59, shall be lodged with the Secretary to the Board at least 10 days before any meeting of such Board:

Provided that where the Secretary is satisfied that delay in the issue of a certificate would cause hardship and is not due to the applicant's negligence, and that the applicant is entitled to the class of certificate applied for, the Secretary may grant him a provisional certificate of the class he is entitled to, pending the next meeting of the Board and the provisional

certificate so granted shall be deemed invalid after the next meeting of that Board.

59.

Fee for exchange certificate.

- Applicants for certificate of competency under Rule 9 shall pay a fee of Rs. 5 for each certificate irrespective of class.

Part XIII ? Certificate of Service

60.

Application for certificate of service.

- Applications for certificate of service under Rule 10 shall be in Form A, appended to these Rules. Each applicant shall duly fill in the form which together with his testimonials and their copies and a challan or money-order receipt for the amount of the fee specified in Rule 63, shall be lodged with the Secretary to the Board at least 10 days before any meeting of such Board:

Provided that the Secretary may on the grounds referred to in the proviso to Rule 58 grant him a provisional certificate of the class he is entitled to, pending the next meeting of the Board and the provisional certificate so granted shall be deemed invalid after the next meeting of the Board.

61.

Candidates practical skill may be tested.

- If on scrutiny of the testimonials of an applicant for a certificate of service under Rule 10, the Board has doubts about the competency of the applicant for the charge and management of a boiler, or if it is necessary to determine the class of certificate for which he is qualified, the Board may subject the applicant to such practical examination as it deems fit.

62.

The Board may at its discretion grant a certificate of service in such form as the Board may think fit to a person as a special case to attend a particular boiler only.

A certificate of service so granted shall have the same effect as a certificate of competency granted under these Rules.

63.

Fee for certificate of service.

- Applicants for certificates of service under Rule 10 shall pay a fee of Rs. 5 for each certificate irrespective of class:

Provided that any fee so paid by an applicant, who is found to be ineligible for the grant of a certificate by reason of the insufficiency of his testimonials of previous service, may be returned to him in full if application is made by him in that behalf within one year from the date of payment.

64.

Enquiry regarding certificate-holders and suspension of certificates.

(1)

If a District Magistrate or Chief Inspector of Boilers has reason to believe, from any cause whatsoever, that an inquiry should be made into any allegation of incompetence, drunkenness, misconduct or negligence on the part of a Boiler Attendant holding a certificate of competency or a certificate of service under these Rules, he shall either himself make such enquiry or in the case of the District Magistrate, cause it to be made by any Magistrate of the first class.

(2)

The holder of such certificate shall on demand by the officer charged with the inquiry, forthwith place in the hands of such officer his certificate to abide the result of such inquiry.

(3)

The proceedings shall be held in the presence of the Boiler Attendant whose conduct forms the subject of inquiry and he shall have an opportunity of making any statement he may wish to make and of producing evidence in his defence.

(4)

The District Magistrate or Chief Inspector of Boilers shall forward the proceedings and when the District Magistrate himself has not made the inquiry also the opinion of the officer conducting the inquiry, to the Secretary to the Board with such recommendations as the District Magistrate thinks fit.

65.

Submission of proceedings before the Board.

- The Secretary to the Board shall submit the proceedings sent by the District Magistrate or Chief Inspector of Boilers under sub-rule (4) of Rule 64 before the next meeting of such Board and the Board at its discretion may allow the certificate to stand or may cancel the certificate as it thinks fit.

66.

Penalties.

- The Owner of a boiler who works or permits or causes the boiler to be worked at any time in contravention of Rule 2 shall be punishable with fine which may extend to five hundred rupees and in the case of a continuing breach with a further fine which may extend to fifty rupees for everyday after the first during which the breach has continued, after having been ordered to rectify the same.

67.

Penalties for violation of Rules 4, 5 and 6.

- Any person in charge of a boiler or any other person who shall work the same or permit or cause it to be worked-

(a)

in contravention of Rule 4 or Rule 5 shall be punishable with fine which may extend to one hundred rupees;

(b)

in contravention of Rule 6 shall be punishable with fine which may extend to two hundred rupees and in the case of repeating such a breach with a further fine which may extend to five hundred rupees.

68.

Limitation and previous sanction for prosecution.

- No charge shall be brought against any person of any offence punishable under these Rules except within six months from the date of the commission of the offence and no prosecution shall be instituted without the previous sanction of the Chief Inspector.

Registered No.....

Form A

(See Rules 25, 58 and 60)

Indian Boilers Act, 1923 (V of 1923)

Application for Boiler Attendants' Certificate of Competency Certificate of Service

Division I. - Name, etc. of the applicant

Name in full

Surname if any

Date of birth

Place of birth

Nature of certificate competency exchange or service

Grade of certificate of competency applied for

Whether appeared in any previous examination

If so, when and where

1

2

3

4

5

6

7

8

Division II. - Particulars of all previous Certificate (if any) whether issued in British India or elsewhere

Number of certificate

Class of certificate of competency

Where issued

Date of issue

If at any time suspended or cancelled, if so, stated by whom

Date

Causes of suspensions or cancellation

1
2
3
4
5
6
7

Division III. - Declaration to be made by the applicant

I do hereby declare that the statement made in Divisions I, II and IV of this form are correct and true to the best of my knowledge and belief; and that the PAPERS enumerated in Division IV and submitted with this form are true and genuine documents and further that the copies of all the documents submitted with this form are true and correct. I further declare that the statement IV contains a true and correct account of the whole period of my service without exception, and I make this declaration conscientiously believing the same to be true.

Dated at this day of 19

Signed in the presence of-

Signature

Designation

Signature or Thumb Impression of the applicant

Present address

Note. - (1) Every application must be accompanied by a treasury challan or money-order receipt showing that the fee for the examination has been paid.

(2)

Two copies of a recent bust photograph of the applicant (size 2" x 2 ¼") be accompanied with the application with applicant's signature or thumb impression on the back thereof.

(3)

Any person making false statement for the purpose of admission to the examination renders himself liable to prosecution.

(4)

Incomplete applications are liable to be rejected.

Division IV - List of testimonials and statement of services

(The testimonials to be numbered consecutively according to the number given in column 1 below)

Number of testimonials (if any)

Date of each testimonial

Name of person signing each testimonials

Address and designation of factory or workshop
where employed

Number, type and heating surface of boilers

Capacity in which employed

1
2
3
4
5
6

Service of applicant

Initial of verifier

Remarks

Commencement

Date of termination

Time employed in this service.

Year

Month

Days

7

8

9

10

11

12

13

Total service

Time served for which certificates are produced

Time served for which no certificates are produced

Division V. - Certificate of Competency

Certified that Mr. has been examined for a Certificate of Competency as Boiler Attendant of class at this day of 19, and has/has not satisfied us of his fitness to hold a certificate of competency as a class Boiler Attendant. He has therefore passed/failed.

Exchange Certificate

Certified that Mr. has produced before us at this day of 19, a Certificate of Competency of the class. We are of opinion that he should be granted a Certificate of Competency of the First/Second class in exchange.

Certificate of Service

Certified that Mr. has produced before us at this day of 19 satisfactory testimonials covering the required period of service and we are of opinion that he should be granted a Certificate of Service of the First or Second class.

Personal description of applicant.

(1)

Nationality

(2)

Religion or caste

(3)

Height -

Ft.....in.....

(4)

Colour of hair

(5)

Complexion of eyes

(6)

Personal marks of particulars

Signatures of Board of Examiners

Issue of Certificate

Certificate no.....of the.....class Boiler Attendant issued and the duplicate recorded.

Secretary, Board of Examiners, Bihar

Related AI tags, queries and research notes

Translation